
2:00 PM **LINE 3**

23-CIV-05709

MIKHAIL MAALLOULI VS. MATTHEW TODD FREDRICKSEN, ET AL

MIKHAIL MAALLOULI
MATTHEW TODD FREDRICKSEN

NATALIE KORDNAIJ

MOTION TO BE RELIEVED AS COUNSEL

TENTATIVE RULING:

The unopposed motion of Navid T. Nour to be relieved as counsel of record for plaintiff Mikhail Maalouli is **DENIED without prejudice**. The court's May 19, 2026 Order Shortening Time, required counsel to serve the moving papers and the order on plaintiff by U.S. mail, return receipt requested, and by email and text message. To date, no proof of service has been filed.

2:00 PM **LINE 4**

24-CIV-03850

ROBERT M. KEARNS VS. ROBERT LAWRENCE ROSENBERG, ET AL

ROBERT M. KEARNS
ROBERT LAWRENCE ROSENBERG

CARTER M. ZINN

DEFENDANT'S MOTION TO COMPEL NEUROPSYCHOLOGICAL EXAMINATION OF PLAINTIFF ROBERT M. KEARNS

TENTATIVE RULING:

Defendant Estate of Robert Lawrence Rosenberg (deceased)'s unopposed motion for an order compelling plaintiff Robert M. Kearns to attend and complete a neuropsychological examination with Dr. William McMullen, a clinical neuropsychologist, and to permit the exchange of raw data and audio recording of the examination only between defendant's expert and a neuropsychologist or other similar expert retained by plaintiff, and not to plaintiff's counsel, is **GRANTED**.

Defendant's request for judicial notice of seven exhibits is **GRANTED**. (Evid. Code §§ 452, subd. (c); 453.)

A. Background

This case arises from an injury accident between plaintiff, a cyclist, and defendant who was driving a motor vehicle. The complaint alleges complex injuries including orthopedic injuries and a brain injury, allegedly involving cognitive and behavioral impairments. Plaintiff also alleges ongoing orthopedic, neurological, and psychological complaints and the need for future treatment regarding these complaints.

Plaintiff has agreed to attend a defense neuropsychological exam, however a dispute remains as to the parameters of the exam, giving rise to the instant motion. Pursuant to Code of Civil Procedure, section 2032.320, subdivision (a), defendant asserts good cause exists for plaintiff to submit to the neuropsychological exam but seeks to protect the integrity of test materials, audio files, and disseminate raw data and audio recording of the testing part of the examination only to an expert retained by plaintiff, and not to plaintiff's counsel.

B. Legal Standard

A defendant generally may obtain a mental examination of a plaintiff if the plaintiff has placed his or her mental condition in controversy. (Code Civ. Proc. § 2032.020, subd. (a).) To do so, a defendant must seek leave of court by motion pursuant to Code of Civil Procedure section 2032.310, subdivisions (a) & (b), as defendant has done here.
